

Contentious Chamber

Decision on the merits 23/2024 of January 24, 2024

File number: DOS-2023-02401

Subject: Complaint regarding the unlawful transmission of personal data of members of a seniors' association

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk VAN DER KELEN and Frank DE SMET, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter "the complainant"

The defendant:

Mr. Y, hereinafter "the defendant"

Decision on the merits 23/2024 — 2/12

I. Facts and procedure

1.

The subject of the complaint concerns the allegedly unlawful transmission of personal data to a third party and the use of personal data for incompatible purposes.

2.

The seniors' association "Z" in Blankenberge lost two members of its board of directors during the COVID period, which compromised its active functioning. On September 30, 2021, the General Assembly voted on the continuation of the association's existence. This vote resulted in the dissolution of the association.

3.

After a two-year interruption of all communication with (former) members, an email was sent by the defendant on April 8, 2023, inviting all former members of Z to participate again in an activity previously organized by Z, which had not taken place since the dissolution of the association. The defendant allegedly organized a similar activity on his own initiative, in collaboration with (...). The invitation was sent from the defendant's personal email address [...].

4.

In the email, the defendant states: "your email address will NO LONGER be used in the future, unless you expressly consent and wish to be kept informed of this activity and/or any other activity organized for seniors. You can, without obligation, indicate the activities that interest you." [Note: The excerpts from the file are free translations made by the translation service of the Data Protection Authority, in the absence of an official translation.] The defendant thus specifies that this invitation is the last email that the members of the former association Z will receive, unless they explicitly request to be kept informed of organized activities (this within (...) - a local seniors' association of a political party). He concludes his email with "my apologies for having used your email address one last time (unless you give your explicit consent for it to continue being used for the announcement of activities) [...]."

5.

The complainant responds to the defendant's invitation on April 17, 2023. The complainant expresses his surprise regarding the use of his email address to announce activities (co)organized by a political association. This would be all the more surprising as, according to the complainant, the association Z

ardently defended political neutrality. On April 30, 2023, the complainant sends a reminder to the defendant, having received no response to his first message.

6.

On May 6, 2023, the defendant responds to the complainant's messages. The defendant argues that he believes "he does not need to seek your consent [that of the complainant] to launch an initiative aimed at gathering people to participate in a movie afternoon. [He]

Decision on the merits 23/2024 — 3/12

does not believe that it should request [the complainant's] consent to inform his personal acquaintances."

7.

On May 17, 2023, the complainant filed a complaint with the local police for the abusive use of personal data. So far, this has not had any further consequences.

8.

On May 24, 2023, the complainant filed a complaint with the Data Protection Authority against the defendant.

9.

On June 26, 2023, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

10.

On July 12, 2023, the Contentious Chamber issued Decision 98/2023 in which it issued a warning to the defendant based on Article 58.2.a) of the GDPR and Article 95, § 1, 4° of the LCA, in order to prevent personal data from being processed in the future without a valid legal basis and that such personal data be used for purposes other than those for which they were originally obtained.

11.

On August 1, 2023, the defendant requested a review on the merits. On August 17, 2023, the schedule for submissions was established and sent to the parties.

12.

On August 17, 2023, the concerned parties were informed by registered mail of the provisions referred to in Article 95, § 2 as well as Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their submissions regarding the following points:

- Alleged violation of Article 5.1.a) of the GDPR, due to the unlawful subsequent use of the list of (former) members of "Z" and the related contact details without the concerned individuals being duly informed in a transparent manner;
- Alleged violation of Article 5.1.b) of the GDPR, due to a breach of the principle of "purpose limitation" following the unauthorized use of the contact details of the (former) members of the senior association "Z" to invite them to join "..." and to participate in activities within the framework of the operation of this organization;
- Alleged violation of Article 6.1 of the GDPR, due to the absence of a legal basis for the subsequent processing of the list of (former) members and the related contact details;
- Alleged violation of Article 13, read in conjunction with Article 5.2 in conjunction with Articles 24.1 and 24.2 of the GDPR, for failing to inform the complainant of the processing of his personal data through a privacy statement.

Decision on the merits 23/2024 — 4/12

13.

The deadline for receiving the defendant's response submissions was set for October 6, 2023, the deadline for the complainant's reply submissions for November 3, 2023, and the deadline for the defendant's reply submissions for December 1, 2023.

14.

On December 15, 2023, the Contentious Chamber received the defendant's response submissions regarding the findings related to the subject of the complaint.

15.

The defendant argues that the members of the former Z were adequately informed within the meaning of Article 5.1.a), read in conjunction with Article 13 of the GDPR. According to the defendant, the email of April 8, 2023, already contained sufficient information. The defendant also claims that Article 5.1.b) of the GDPR (the principle of purpose limitation) was not violated, as the members of Z are not required to become members of (...). The purpose of the email of April 8, 2023, remains the same as originally, namely to bring people together. The activities of (...) being similar to those organized at the time by Z, the defendant used the email addresses only once to inform the members of the former Z.

16.

The defendant attaches a form that would have been sent to the members at the time of the creation of Z. This form allowed the dissolved members of Z to indicate the activities they wished to be informed about. Completing this form was not mandatory. At the bottom of the form, it is specified that "the personal data [will] only be used to keep you informed of the activities of Z and Z1 and [will] never be transmitted to third parties." The defendant also states the following in his defense: "I would like to emphasize here that the contact details of the former members in my possession as the former secretary of Z have NEVER been and will NEVER be communicated to third parties. However, (...) is aware of the number of non-members who wish to be kept informed of the proposed activities."

17.

On October 29, 2023, the Contentious Chamber received the complainant's reply submissions, in which the following points regarding the subject of the complaint were communicated.

The main element put forward by the complainant in his submissions is the statement of Ms. W (president of (...)) that she has the list of former members of "Z"¹. This statement was signed by the president on October 4, 2023. The complainant concludes the following: "This completely contradicts Mr. Y's assertion that he never transmitted the list of members of Z. It is evident and thus clearly proven that the data of the individuals who participated in the activities of Z" have indeed been communicated to the political association of seniors and to (...).

1 "I am in possession of the list of former members of 'Z'."

Decision on the merits 23/2024 — 5/12

The complainant also emphasizes that gathering individuals within a political association cannot constitute a purpose compatible with the initial processing of personal data that took place in the context of a neutral organization. The complainant therefore considers that the principle of purpose has been violated.

18.

On December 1, 2023, the Disciplinary Chamber received the defendant's reply regarding the findings related to the subject of the complaint.

The defendant argues that hundreds of recipients wished to be kept informed. Hundreds of people did not respond and will not receive further emails. The defendant states that he indeed transmitted a list of data to (...), but it only concerns the personal data of individuals who explicitly agreed to be contacted again, in accordance with what he had already stated in his initial conclusions.

Regarding Ms. W's statement, the defendant specifies that it is unclear from whom she obtained this list of members, nor what the concrete content of this list is (for example, how many members are included). The defendant then submits his own statement from Ms. W, which states the following:

"Following our telephone conversation, I have thought it over and I must state that I never said that I was still in possession of the list of Z." I believe that the letter I signed indicated that we were renouncing the list and that it was no longer in our possession."

II. Reasoning

19.

The complaint can be subdivided into two aspects: the part concerning the retention of the list of members and its use to invite former members of Z to activities on the one hand, and the alleged transmission of this same list of former members to (...), on the other hand.

20. Regarding the first aspect of the complaint, the Disciplinary Chamber deduces that the modalities of processing personal data were not clearly determined in advance, particularly what was to happen to the lists of (former) members when the association ceased to exist. In principle, in accordance with

the principle set out in Article 5.1.e) of the GDPR, the association's retention policy should provide for the timely deletion of personal data.

However, this finding of the Disciplinary Chamber applies to the already dissolved association Z as the data controller and does not fall within the scope of the present complaint. In this case, the defendant only assumed responsibility for processing when he decided to use the personal data to contact former members in the context of organizing an activity.

Decision on the Merits 23/2024 — 6/12

21.

In this regard, the defendant states in one of his responses to the complainant that he does not need the latter's consent to inform his personal circle of acquaintances about the holding of an event. If the Contentious Chamber admits that an invitation to the personal circle of acquaintances could fall under the domestic exception provided for in Article 2.2.c) of the GDPR, it must note that in this case, there has clearly been use of the list of former members of Z. Furthermore, this is an event organized in collaboration with an association, which shows that it is not a purely personal matter. Moreover, the email address list was established due to the existence of the seniors' association Z, an association with legal personality. The Contentious Chamber believes that the domestic exception cannot be invoked.

22.

In this case, the defendant's obligation to inform pertains solely to the retention of personal data and the use of contact details to inform the former members of the organization about an activity similar to that originally organized by Z. Indeed, at the time of sending the first invitation dated April 8, 2023, the individuals concerned were not informed that their personal data was still retained on a list derived from the list of members of Z. Furthermore, they were not informed of any subsequent contacts regarding activities organized by third parties.

23.

In this regard, the Contentious Chamber concludes that the individuals concerned were not (sufficiently) informed and that the principle of transparency set out in Article 5.1.a) of the GDPR has therefore not been respected. The principle of transparency must be read in conjunction with the information obligation of Article 13 of the GDPR. The Contentious Chamber believes that this obligation has also not been respected.

24.

A second grievance raised by the complainant is the use of personal data collected in a specific context (namely the organization of activities within a politically and ideologically neutral association) for another purpose (namely the organization of activities in cooperation with or within an association that has a political affiliation).

25.

The Contentious Chamber does not clearly grasp whether the personal data was processed within the framework of the participatory functioning of Z on the basis of consent (Article 6.1.a) GDPR) or legitimate interest (Article 6.1.f) GDPR). Indeed, it does not clearly emerge from the consent form submitted to the Contentious Chamber that it relates to consent under Article 6.1.a) of the GDPR. Furthermore, all the conditions required to speak of valid consent within the meaning of Article

2 See also Decision 25/2020 of the Contentious Chamber, §§ 57 et seq. for further explanations on the concept of "domestic exception."

3 See also Recital 18 of the GDPR.

Decision on the merits 23/2024 — 7/12

4.11) of the GDPR are not met. Indeed, no clear consent appears in the form submitted to the Contentious Chamber by the defendant. Likewise, no information regarding potential processing was included. The Contentious Chamber therefore considers that Article 6.1.f) of the GDPR may have been invoked (i.e., the legitimate interest in keeping members informed of the activities organized that they themselves deemed interesting). In the case of initial processing based on Article 6.1.f) of the GDPR, it is possible that subsequent processing may occur, provided that such processing is compatible with the initial processing (cf. Article 6.4 of the GDPR).

26.

In accordance with Article 5.1.b) of the GDPR, the processing of personal data for purposes other than those for which they were initially collected may only be authorized if it is compatible with the purposes for which the personal data were initially collected. Given the criteria set out in Article 6.4 of the GDPR and Recital 50 of the GDPR, it is therefore necessary to verify whether the subsequent processing, in this case, the use of the contact details from the member list of Z for the purpose of inviting to an activity of a third association, is or is not compatible with the initial processing consisting of maintaining a list of members and using the contact details to inform members of activities organized by Z or Z14.

27.

The Contentious Chamber concludes that the complainant who provided their personal data to the board of directors of Z as part of their membership in the association could not reasonably expect at all that the defendant, who indeed has a connection with the organization of the former Z but who did not sit on the board of directors of that organization, would use this personal data, after the dissolution of the organization in question, for the purpose of sending an invitation to an activity of another association. The form that former members could fill out, which the defendant communicates to the Contentious Chamber in their conclusions, states the following: "The personal data will only be used to keep you informed of the activities of Z and Z1 and will never be shared with third parties." (emphasis added by the Contentious Chamber) It should be noted in this regard that the context in which the personal data were initially collected does not justify further processing.

4 Recital 50 of the GDPR: "[...] In order to determine whether the purposes of subsequent processing are compatible with those for which the personal data were initially collected, the controller, after having complied with all the requirements related to the lawfulness of the initial processing, should take into account, among other things: any link between those purposes and the purposes of the intended subsequent processing; the context in which the personal data were collected, in particular the reasonable expectations of the data subjects, based on their relationship with the controller, regarding the subsequent use of such data; the nature of the personal data; the consequences for the data subjects of the intended subsequent processing; and the existence of appropriate safeguards both for the initial processing and for the intended subsequent processing."

5 See also the decision on the merits 03/2021 of January 13, 2021, for similar reasoning (§§ 13 et seq.).

Decision on the merits 23/2024 — 8/12

subsequent compatible processing. The personal data was indeed collected by (the board of directors of) Z and this association was already dissolved in 2021.

28.

It is therefore appropriate to note that there is no question of subsequent compatible processing, so a distinct legal basis is required for the use of the contact details to send an invitation to an activity of another association to be considered lawful.

29.

The processing of personal data, and therefore also incompatible subsequent processing as in this case, is indeed lawful only if there is a legal basis for it. For incompatible subsequent processing, it is necessary to rely on Article 6.1 of the GDPR as well as Recital 50 of the GDPR. Recital 50 of the GDPR indicates that a distinct legal basis is required for the processing of personal data for purposes that are not compatible with the purposes for which the personal data was initially collected. These distinct legal bases that allow for the consideration of processing as lawful, including therefore incompatible subsequent processing, are defined in Article 6.1 of the GDPR.

30. The Contentious Chamber therefore finds that the principle of purpose limitation (Article 5.1.b of the GDPR) has been violated by the defendant, due to the unauthorized use of the contact details of former members of Z to invite them to activities in the context of the operation of (...), even though the invitation did not originate directly from the latter. (...)

31.

The defendant does not mention any legal basis that would allow him to proceed with the processing of data that is the subject of the complaint. Based on the factual elements present in the file, the

Contentious Chamber examines ex officio whether a legal basis can possibly be invoked that would allow the defendant to use the list of members of Z to send emails regarding other activities.

32.

However, the Contentious Chamber finds that there does not appear to be any legal basis on which the defendant can rely for the processing of personal data concerning the subsequent processing of personal data and contacting the individuals concerned for activities. Neither consent nor legitimate interest can serve as a basis for the subsequent processing of personal data in the context of the defendant's email of April 8, 2023.

6 See Article 6.4.b) of the GDPR.

7 Recital 50 of the GDPR: The processing of personal data for purposes other than those for which the personal data was initially collected should only be permitted if it is compatible with the purposes for which the personal data was initially collected. In this case, no distinct legal basis from that which allowed the collection of personal data will be required. [...]

Decision on the Merits 23/2024 — 9/12

33. Indeed, the consent initially given to process personal data for the purpose of being informed about Z's activities does not extend to information regarding activities organized by other associations. Furthermore, it can hardly be considered free, informed, explicit, and specific consent.

34. Regarding legitimate interest as a possible legal basis for processing, the Contentious Chamber must find that this processing does not fall within the reasonable expectations of the data subjects (again, due to the fact that the form specifically states that personal data will only be processed for the purposes of Z and Z1), and consequently, the processing does not meet the balancing test that must take place under Article 6.1(f) of the GDPR. This consideration alone is sufficient for the Contentious Chamber to conclude that Article 6.1(f) of the GDPR cannot be invoked as a legal basis for the processing. The Contentious Chamber therefore finds a violation of Articles 6.1 and 5.1(a) of the GDPR.

35. Regarding the potential transmission of Z's member lists to (...), the Contentious Chamber concludes from the defendant's defense that it concerns an activity co-organized by the defendant, but this in collaboration with (...). However, given that it is clear that the email was sent by the defendant himself (and not by a member organizer of (...)), it does not appear that the list of Z's members was transmitted outright to (...). The contact is made solely by the defendant, and not by (...) (and ...) will not subsequently contact former members of Z without an express request in this regard (i.e., consent in accordance with Article 6.1(a) of the GDPR).

36. In the eyes of the Contentious Chamber, the statement of Ms. W submitted by the complainant, which mentioned that (...) is in possession of a list of former members of Z, is not sufficient to convince that the defendant transmitted the complete lists to (...). As the defendant also points out, it is not specified whether it concerns the entire list of members or only the personal data and contact details of former members who explicitly consented to be contacted. The defendant also indicates in his defense that (...) does indeed have a list of former members of Z who have expressly requested to be kept informed of certain activities that would still be organized in the future, whether in cooperation with (...) or not. Furthermore, Ms. W's second statement clearly shows that she is not sure of her first statement.

8 See Articles 4.11) and 7 of the GDPR; see Guidelines 05/2020 (EDPB) on consent under Regulation 2016/679 of May 4, 2020.

9 EDPB Guidelines 3/2019, para. 36. CJEU, Judgment of December 7, 2023, Schufa, Joined Cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, para. 78.

10 CJEU, Judgment of May 4, 2017, Rīgas Satiksme, C-13/16 ECLI:EU:C:2017:336, para. 30.

Decision on the Merits 23/2024 — 10/12

37.

The Contentious Chamber therefore finds that there is no evidence that an unlawful transmission of personal data has occurred, insofar as it is not the original list of members that was transmitted to (...), but only a more concise version containing only the personal data of the data subjects who have

clearly expressed the wish to be kept informed. In this regard, it should be recalled that the data controller(s) must properly inform the data subjects of what exactly happens to their personal data and who has access to it.

III. Corrective Measures and Sanctions

38. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order the dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and the notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the Public Prosecutor's Office of the King of Brussels, which will inform it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

Decision on the Merits 23/2024 — 12/12

Pursuant to Article 108, § 1 of the LCA, this decision may be subject to appeal before the Market Court (Court of Appeal of Brussels) within thirty days from the date of its notification, with the Data Protection Authority as the defendant.

Such an appeal may be filed by means of a contradictory application which must include the information listed in Article 1034ter of the Judicial Code. The contradictory application must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit IT system of the Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Litigation Chamber

11 "The application must contain, under penalty of nullity:

- 1° the indication of the day, month, and year;
- 2° the name, first name, and address of the applicant, as well as, where applicable, their capacity and national register number or business number;
- 3° the name, first name, and address of the person to be summoned, and, where applicable, their capacity;
- 4° the subject matter and a brief summary of the grounds for the application;
- 5° the indication of the judge who is seized of the application;
- 6° the signature of the applicant or their lawyer."

12 "The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed at the registry."